

INTERIM TREASURER'S CONTRACT

This Agreement ("Agreement" or "Contract") is made and entered by and between the Brecksville-Broadview Heights City School District Board of Education ("Board" or "BBH Schools") and John W. Scott ("Mr. Scott" or "Interim Treasurer") pursuant to action taken by the Board as found in the minutes of its public meeting held on the 7th day of August 2019.

WHEREAS, the Board and Mr. Hall had entered into a contract for employment of Treasurer of Schools effective August 1, 2019, through July 31, 2021, ("2019-2021 Treasurer Contract");

WHEREAS, Mr. Hall tendered his resignation of employment under the 2019-2021 Treasurer Contract, which resignation was accepted by the Board at its August 7, 2019, meeting as effective August 15, 2019; and,

WHEREAS, the Board desires to appoint Mr. Scott as its Interim Treasurer effective August 16, 2019, while the Board searches for its new Treasurer and Mr. Scott has agreed to serve as the Interim Treasurer beginning August 16, 2019 as provided in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants contained herein the Board and Mr. Scott (the "parties") do hereby agree as follows:

1. **TERM OF AGREEMENT.** The Board, in accordance with its action as found in the minutes of its meeting held on the 7th day of August 2019, and pursuant to the authority contained in R.C. 3313.22, hereby employs Mr. Scott and Mr. Scott hereby accepts employment as Interim Treasurer of the BBH Schools for a term commencing August 16, 2019 and ending as provided in section 9. Mr. Scott acknowledges and agrees he has been notified as required by law of all duties and obligations under Chapter 3309 of the Ohio Revised Code pertaining to School Employees Retirement System, as a condition of employment.

2. **REQUIRED WORK HOURS.** The Interim Treasurer will work all regular business days during the term, unless otherwise approved by the Board. The Interim Treasurer shall devote such time and energies as are necessary to perform the duties specified in the job description. These duties will generally be performed during normal business hours, but it is expressly agreed that the duties of this position will require the Interim Treasurer to work during times other than normal business hours. The Interim Treasurer will be afforded some flexibility in his work schedule.

The Interim Treasurer may undertake consultative work, speaking engagements, writing, lecturing or other professional duties and obligations that benefit the district. All obligations that require time outside the district during the Interim Treasurer's regularly contracted work days must be approved by the Board, in advance. The Interim Treasurer shall be permitted to accept stipends and/or expenses for activities provided to other groups or districts if allowed by law.

3. JOB DUTIES. The Interim Treasurer shall devote his full-time skill, labor and attention to his position in faithfully performing all duties as prescribed by law and as are consistent with Board policy for such term, or until such time as this contract may expire or be terminated as authorized by law. The Interim Treasurer shall perform the duties specified in the job description for the Treasurer as adopted by the Board, or as it may be amended from time to time during the term of this Contract. Such job description, as amended, is hereby incorporated in this Contract by reference as if fully restated herein. It is expressly understood and agreed that the duties of this position will require Interim Treasurer to work during times other than normal business hours including his/her attendance at Board of Education meetings.

4. PROFESSIONAL CERTIFICATION AND BOND. This Agreement shall terminate automatically and without further notice or process upon the failure of the Interim Treasurer to maintain a valid and appropriate licensure/certificate issued by the Ohio Department of Education to act as a treasurer of schools in the State of Ohio. The Board shall pay for any bond on the Interim Treasurer if required by law, conditioned on the faithful performance of his duties to the Board.

5. COMPENSATION. The Interim Treasurer shall be paid on an hourly basis at the rate of \$85.00 per hour for each day worked during the term of this Agreement. Such compensation is payable at the same time and in the same manner as other administrative employees of the Board. The Interim Treasurer shall keep and submit proper written time entries to verify work performed, which shall be approved by the Board President. As a temporary, as-needed employee, the Interim Treasurer is not entitled to sick leave, personal leave, health insurance, or any other economic benefit, except as expressly provided herein.

6. OTHER COMPENSATION. The Board shall pay the employer and employee's share of the School Employees Retirement System ("SERS") contributions on all forms of compensation the Interim Treasurer receives under this Agreement. The Board shall pay the employee's share of the Medicare tax as imposed by section 31.01(b) of the Internal Revenue Code.

7. EXPENSES. The Board shall reimburse the Interim Treasurer for all actual and necessary expenses incurred in the performance of his official duties during his employment under this Agreement, subject to such limitations as are provided by law and by Board policy and provided he secured prior written approval from the Board President before incurring the expense.

8. INDEMNIFICATION. The Board agrees that it shall defend, hold harmless and indemnify the Interim Treasurer from any and all demands, claims, suits, actions and legal proceedings brought against him in his individual or official capacity as agent and employee of the Board, provided that the incident which gives rise to the litigation occurred while the Interim Treasurer was acting within the scope of his employment and provided such defense, indemnification and liability coverage is within the authority of the Board to provide under the laws of the State of Ohio. In no case will individual Board members be considered personally liable for indemnifying the Interim Treasurer against such demands, claims, suits, actions and legal proceedings. If the Interim Treasurer and the Board mutually decide that a conflict between the legal position of the Interim

Treasurer and the legal position of the Board exists with respect to defense to such claims, the Interim Treasurer may engage counsel, in which event the Board shall indemnify him for the cost of legal defense in a manner consistent with and as permitted by the laws of the State of Ohio. The Board will not unreasonably withhold permission for the Interim Treasurer to have separate counsel under such circumstances. In any event, the Board shall not be required to pay any cost of any legal proceedings in which the Board is asserting a claim against the Interim Treasurer or the Interim Treasurer is asserting a claim against the Board.

9. CONTRACT TERMINATION. The employment of the Interim Treasurer may be terminated:

- A. By mutual agreement of the parties;
- B. Upon three (3) calendar days written notice from the Board to Mr. Scott, in anticipation of appointment of a new treasurer; or,
- C. Upon the retirement, disability or death of the Interim Treasurer.

10. NO ENTITLEMENT TO EVALUATION/NON-RENEWAL. The Interim Treasurer's Contract expires at the end of its term (when the vacancy in the Treasurer's office is filled) and no further action by the Board or notice is required and there shall be no automatic renewal. Further, Interim Treasurer is not eligible for severance pay. While the Board may opt to review the performance of the Interim Treasurer through performance reviews, evaluations of Interim Treasurer are not required in order to non-renew this contract.

11. MISCELLANEOUS PROVISIONS. To the extent applicable, Interim Treasurer acknowledges and agrees that he expressly waives any right to carry over accumulated sick leave from any prior employment to his employment under this Contract. Interim Treasurer further acknowledges and agrees that he will not retire under SERS while employed with BBH Schools and expressly waives any right to do so. There shall be no modification to this Contract except that in writing and signed by the parties upon proper Resolution of the Board. This Contract contains the entire agreement between the parties and any purported agreement not herein contained, expressly or by implication, shall not be recognized. To the extent applicable, the provisions of Sections 3301.074, 3313.22-3313.32, and 3319.31 and all other sections of the Ohio Revised Code and its accompanying regulations relating to the powers, duties and qualifications of Interim Treasurer and the Board, as well as all Board policies and guidelines discussing the same, are incorporated into and are made a part of this Contract. This Contract shall be subject to and construed according to the laws of the State of Ohio. Any provision hereof declared invalid or unenforceable by a court of competent jurisdiction shall be severed and the remaining terms continued in full force and effect.

12. CONSULTANT DAYS. The Board and Mr. Scott agree that for those work days from August 8, 2019 through August 15, 2019, the Board President may authorize Mr. Scott to work as a consultant, as the Board President deems necessary to effectuate a smooth transition on August 16, 2019, to his Interim Treasurer position at the district. The Board will pay Mr. Scott

the hourly rate of \$85.00 per hour for any hours he works on a transition day he works that is authorized by the Board President.

13. SAVINGS CLAUSE. If any portion of this Agreement is deemed to be illegal or unenforceable, the remainder thereof shall remain in full force and effect.

14. COMPLETE AGREEMENT. This writing sets forth the complete agreement of the parties and shall not be varied or amended except in writing signed by both parties and pursuant to properly adopted resolutions of the Board. This Agreement supersedes all prior agreements, arrangements, and communications between the parties, whether oral or written.

IT IS SO AGREED:

IN WITNESS WHEREOF, the parties have set their hands hereunto on the date first set forth above

THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT BOARD OF EDUCATION

By: _____
Board President Date

By: _____
Treasurer or Treasurer Pro Tempore Date

MR. JOHN W. SCOTT:

John W. Scott Date: _____